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BEFORE THE MADURAI BENCH OF MADRAS HIGH COURT

RESERVED ON : 07.10.2026

PRONOUNCED ON : 09.10.2026

CORAM

THE HON'BLE MR JUSTICE R.VIJAYAKUMAR

CRL OP(MD) No. 23212 of 2025

CNR:{HCMD011922102025}

AND

CRL MP(MD) No. 20118 of 2025

CNR:{HCMD011922122025}

Suguna ....Petitioner/sole accused

Vs

1. State Of Tamilnadu Rep By
   The Inspector Of Police,
   Palayamkottai Police Station,
   Tirunelveli City,
   (Crime No. 521 of 2025) ....Respondent/Complainant

2. Arockia Subashini ...Respondent/Defacto Complainant

PRAYER: This petition is filed under Section 528 of BNS to call for the records pertaining to the FIR in Crime No. 521 of 2025 on the file of the Inspector of Police, Palayamkottai, Tirunelveli City and quash the same as the petitioner is concerned.

For Petitioner: Mr.R.L.Dhilipan Pandian

For Respondents: Mr.V.Shanthurthi Raja
Government Advocate (Crl.side) for R1

Mr.B.Satheesh Kumar for R2

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ORDER

This Criminal Original Petition has been filed by the petitioner, who stands arrayed as the sole accused in Crime No.521 of 2025 on the file of the first respondent police, seeking to quash the said FIR registered against her for the alleged offence under Section 296(b) of BNS, 2023.

2.On a perusal of the FIR, it is seen that the complaint has been lodged by a woman Constable, the second respondent herein, as against the petitioner, who is the wife of an Additional Deputy Superintendent of Police. The allegations set out in the FIR, in brief, are as follows:

a)On 05.08.2025, the petitioner and her daughter are alleged to have made a WhatsApp call to the defacto complainant and caused disturbance to her.

b)On 06.10.2025, while the defacto complainant was on duty, the petitioner is alleged to have suddenly entered the office, scolded her husband, the Additional Deputy Superintendent of Police, and thereafter hurled abuses at the defacto complainant.

c)The petitioner is further alleged to have been in the habit of calling the defacto complainant on several occasions during

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duty hours, enquiring about the whereabouts of her husband and the time of his return, and to have threatened the defacto complainant. These facts are stated to be within the knowledge of two drivers who had worked under the said Additional Deputy Superintendent of Police.

3.The learned counsel appearing for the petitioner would contend that the petitioner entertained a doubt as to the fidelity of her husband and it was only to ascertain the same that she had gone to his office. It is submitted that the FIR does not set out the actual obscene words alleged to have been uttered, which is essential to attract the offence under Section 296(b) of BNS. It is also not stated in the FIR that any obscene words were uttered in or near a public place. The learned counsel would further submit that the petitioner's husband and the defacto complainant are presently working at two different places and that there is no subsisting dispute between the petitioner and the defacto complainant.

4.It is therefore contended by the learned counsel for the petitioner that the essential ingredients of the offence under Section 296(b) of BNS are not made out, and he prayed for quashing of the FIR.

5.Per contra, the learned counsel appearing for the second respondent/defacto complainant would submit that the petitioner had, on several occasions, called the defacto complainant over phone and caused disturbance to

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her. It is further submitted that on 06.10.2025, the petitioner came to the office in person and abused the defacto complainant in obscene language. Hence, he prayed that the investigation may be permitted to proceed.

6.Heard the learned counsel appearing on either side and perused the materials available on record.

7.A reading of the FIR discloses that the petitioner, who is the wife of the Additional Deputy Superintendent of Police, is alleged to have entered the office of her husband during office hours and picked up a quarrel with the defacto complainant, on a suspicion that the defacto complainant was having an illicit relationship with her husband. However, the exact obscene words said to have been uttered by the petitioner have not been recorded in the FIR. Insofar as the incident dated 05.08.2025 is concerned, the same is admittedly through a WhatsApp call and, as such, it would not attract the ingredients of Section 296(b) of BNS.

8.Taking note of the fact that the petitioner's husband and the defacto complainant are now working at two different places, and in the absence of the essential ingredients of the offence under Section 296(b) of BNS, this Court is of the considered view that permitting the criminal proceedings to continue as against the petitioner would only amount to an abuse of the process of law.

9.In view of the foregoing discussion, the FIR in Crime No.521 of 2025

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on the file of the first respondent police is hereby quashed and this Criminal Original Petition stands allowed. Consequently, the connected miscellaneous petition is closed.

09-10-2026

Index: Yes/No
Speaking/Non-speaking order
Neutral Citation: Yes/No
msa

To

1. The Inspector Of Police,
   Palayamkottai Police Station,
   Tirunelveli City,
   (Crime No. 521 of 2025)

2. The Additional Public Prosecutor
   Madurai Bench of Madras High Court
   Madurai

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